

Plaintiff's request for sanctions is denied. Counsel for the Defendant shall prepare and submit a form of order within two weeks.

5. 25CV02079 NLC CA, INC. ET AL V. WEEKS FOREST PRODUCTS INC

EVENT: Plaintiffs' Motion for Leave to File First Amended Complaint

Plaintiffs' Motion for Leave to File First Amended Complaint is unopposed and is granted and the Court will sign the form of order submitted by the Plaintiffs.

6-7. 25CV03755 CLEANRITE, INC V. WHIPPLE, TIMOTHY ET AL

EVENTS: (1) Demurrer to First Amended Cross-Complaint

(2) Motion to Strike Portions of First Amended Cross-Complaint

The Court finds that the Cross-Complainants Timothy Whipple and Shelly Whipple have sufficiently plead both their Fourth Cause of Action – Fraud and Intentional Misrepresentation and Sixth Cause of Action – Rescission and Restitution, and the Demurrer to the First Amended Cross-Complaint is overruled in its entirety.

In pleading punitive damages, a party must plead facts from which it can be reasonably inferred that the defendant acted with malice, fraud within the meaning of *Civil Code* §3294. "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages . . . Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." *Grieves v. Superior Court* (1984) 157 Cal.App.3d. 159, 166. Here, the Court finds that there are sufficient allegations of fraud and therefore the claim for punitive damages is appropriate. The Motion to Strike Portions of First Amended Cross-Complaint is denied.

Cross-Defendant Cleanrite, Inc. is ordered to file and serve its Answer to the First Amended Cross-Complaint within 20 days of this hearing. Counsel for Cross-Complainants Timothy Whipple and Shelly Whipple shall prepare and submit a form of order consistent with this ruling within two weeks.

8. 25PR00342 ESTATE OF LOPEZ, JAMES M

EVENT: Demurrer to First Amended Petition of Nancy Sandburg

While the Court acknowledges that a demurrer is generally required to be filed within 30 days after service of the complaint pursuant to *Code of Civil Procedure* §430.40, this time limit is not mandatory but permissive, as the statute uses the term "may" rather than "must". See, *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253. Courts have discretion to consider a demurrer filed beyond the 30-day period if doing so does not affect the substantial rights of the parties. *Ibid*. As there has been no argument by Petitioner Nancy Sanburg ("Petitioner" herein) in regard to any prejudice, or impact on